GRIMES COUNTY COMMISSIONERS COURT

SPECIAL MEETING

OFFICIAL MINUTES — THURSDAY, NOVEMBER 12, 2026

The Grimes County Commissioners Court met on Thursday, November 12, 2026, at 10:00 A.M. Members Present: County Judge Joe Fauth, Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska, Commissioner Phillip Cox.

County Judge Joe Fauth called the meeting to order.

Call to Order

Grimes County Elections Administrator - Rachel Walker (JF) — Rachel Walker, Grimes County Elections Administrator

1. **Consider and take action to canvass the returns and declare the results of the November 3, 2026 Gubernatorial Election. — Rachel Walker, Grimes County Elections Administrator**

   Elections Administrator Rachel Walker presented the official election returns for the November 3, 2026 gubernatorial election. Her office completed tabulation of all early voting, election day, and eligible ballots processed by the early voting ballot board. The official results, compiled by precinct, were presented to the court along with supporting documentation for examination and canvassing. Walker requested that the court accept and declare the canvas.

   Motion by County Judge Joe Fauth to Approve the canvass of returns and declare the results of the November 3, 2026 Gubernatorial Election. Seconded by Commissioner Michael Raska. Carried (5–0–0).

Grimes County Attorney - Megan Barcak — Megan Barcak, Grimes County Attorney

2. **Discuss and take any necessary action concerning pending litigation, Cause No. D-1-GN-26-008509 SpaceX v. Ken Paxton & Grimes County and Marie Egyed v. Grimes County. — Megan Barcak, Grimes County Attorney**

   The court will go into closed session pursuant to Section 551.071 of the Texas Local Government Code, for Consultations with Attorney regarding pending litigation.
   County Judge Joe Fauth opened discussion of pending litigation in two matters: SpaceX v. Ken Paxton and Grimes County, and Marie Egyed v. Grimes County. The court entered closed session pursuant to Texas Local Government Code Section 551.071 to consult with its attorney regarding the pending litigation. Court convened at 10:04 AM. Upon returning from executive session at 11:27 AM, County Judge Joe Fauth reported that no decisions had been made during the closed discussion, although substantial discussion had occurred. County Judge Joe Fauth proposed authorizing County Attorney Megan Barcak to hire outside counsel to assist with the litigation and recommended an initial allocation of $125,000. County Auditor Jessi Murphy clarified that a budget line for litigation had been added that did not appear on the printed materials, and County Judge Joe Fauth revised the proposal to place the $125,000 allocation into Barcak's existing litigation budget line, bringing that account from $500 to $125,500. County Judge Joe Fauth instructed that Barcak keep the court informed as expenses were incurred and that she would oversee that budget line.

Motion by County Judge Joe Fauth to Authorize Megan Barcak to hire outside counsel for pending litigation and allocate $125,000 from the emergency fund balance to bring her existing litigation budget line, from $500 to $125,500 with instruction to keep the court informed as expenses come in. Seconded by Commissioner Chad Mallett. Carried (5–0–0).

Motion by Commissioner Michael Raska to Adjourn the meeting. Seconded by Commissioner Phillip Cox. Carried (5–0–0). The meeting adjourned at 10:07 AM.

THE OFFICIAL MINUTES OF THE GRIMES COUNTY COMMISSIONERS COURT ON November 12th, 2026, ARE HEREBY APPROVED.

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County Clerk, Barbara Kimich